

RESOLUTION OF RIGHTS PROCEDURE

Considering the complaint registered on September 5, 2023, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: A.A.A. (hereinafter, the complainant) exercised the right of Access against CALLSTAMP COMMUNICATIONS, S.L. (hereinafter, the respondent) without their request having received the legally established response.

The complainant states that on June 4, 2023, they sent a request for access to their personal data to the respondent entity via email to the address ***EMAIL.1, without having received a response once the established deadline for obtaining a reply had passed.

They provide a copy of their request and the email sent.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

THIRD: The outcome of the transfer procedure indicated in the previous Fact did not allow for the complainant's claims to be considered satisfied. Consequently, on December 5, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing period, so that within ten working days, they could present any allegations they deemed appropriate, summarizing the following allegations:

"The complainant had forgotten the password to access their private area and requested a new one. The problem is that their request had been made from an email address different from the one provided at the time of registration.

For that reason, the complainant was responded to by requesting their phone number to resolve the issue. As can be seen in the accompanying documentation, the complainant responded, but no one answered the calls that were made. The company's operation in these cases is not to attend to the request. To do so, it must first ensure that the complainant is the same person who registered. Otherwise, access would be granted to personal information to individuals who are not clients of Burovoz.

In short, the request was not attended to because neither their email nor their phone number matched those on record. No one better than the Agency I have the honor of addressing can understand that acting in this way would be a flagrant violation of our clients' privacy.

The incident reported is the only communication received from the complainant. The document accompanying their previous communications has never been received on our email server, and therefore has never been able to be answered.

The email address for addressing the ARCO rights of the affected parties is ***EMAIL.2 and not the email address to which the complainant claims to have sent the access request.

Considering that we are requested to credibly substantiate this response, we understand that the same evidentiary requirement will be required of the complainant.

The truth is that the complaint document could never have reached our address for the simple reason that the postal address is incorrect. Moreover, the postal address provided does not exist. Had we received it, we would have acted in the same way as in the first complaint from Mr. A.A.A.; requesting their phone number to inform them that the request was made from an email address different from the one used during registration.

It is also worth noting that this company cannot, under any circumstances, attend to access requests. The only thing it can do is provide a password that grants access to their information. The reason is

that this information is stored encrypted and the only one who has the decryption key is the person who registered.

The only thing Burovoz knows is the “hash” of the file of their electronic proofs. Not its content. As could not be otherwise, the only one who has access to that information is the one who commissioned it.”

FOURTH: After examining the document submitted by the respondent, it is forwarded to the complainant, so that, within fifteen working days, they may formulate any allegations they deem appropriate, not formulating allegations within the established deadline.

LEGAL GROUNDS

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/6

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure. Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints submitted by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the respondent for analysis, requiring a response to this Agency within one month and proof of having provided the complainant with the appropriate response.

The result of this forwarding did not allow for the understanding that the claims of the complainant were satisfied. Consequently, on December 5, 2023, for the purposes provided in Article 64.1 and 65 of the LOPDGDD, the complaint submitted was admitted for processing. This admission for processing determines the opening of the present procedure regarding the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

“When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure will be six months from the date on which the

admission agreement was notified to the complainant. After this period, the interested party may consider their complaint accepted.”

Article 58.2 of the GDPR grants the Spanish Agency for Data Protection a series of corrective powers for the purpose of rectifying any infringement of the GDPR, including “ordering the controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation.”

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to the provisions expressed in Recitals 59 and following of the GDPR.

In accordance with these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless they can demonstrate that they are unable to identify the data subject, and to state their reasons in case they do not intend to comply with such request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of Access

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

5/6

Regarding the right of access to personal data, in accordance with the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the data controller may request the affected party to specify the "data or processing activities to which the request refers." The right will be considered granted if the data controller provides remote access to the data, thus fulfilling the request (although the interested party may request the information referred to in the provisions of Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a period of six months, unless there is a legitimate reason for doing so. Furthermore, the request will be considered excessive when the affected party chooses a means other than the one offered that entails a disproportionate cost, which must be borne by the affected party.

Like the other rights of the interested party, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them and being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the source of the data (if they have not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of

obtaining a copy of the personal data being processed will not negatively affect the rights and freedoms of others.

V

Conclusion

During the processing of this procedure, the entity being complained about has responded to this Agency, but does not demonstrate having addressed the request made by the complainant, sending the required response to their request.

Thus, it cannot be accepted that the response that should be given can be expressed merely as part of an administrative procedure, such as the submission of allegations in the context of this procedure, initiated precisely for failing to properly address the request in question, but rather a response must be given to the complainant themselves.

The aforementioned rules do not allow for the request to be overlooked as if it had not been made, leaving it without the response that the data controllers are obliged to issue, even in cases where there are no data in the files or even in those cases where the requirements are not met, in which case the recipient of such a request is also obliged to require the correction of the observed deficiencies or, if applicable, to deny the request with justification indicating the reasons why the right in question cannot be considered.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
6/6

Therefore, the request made obliges the responsible party to provide an express response in all cases, using any means that justifies the receipt of the response.

Given that a copy of the necessary communication that must be directed to the claimant informing them of the decision made regarding the request for the exercise of rights is not attached, it is appropriate to uphold the claim that originated this procedure.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the claim made by A.A.A. considering that the provisions of Article 15 of the GDPR have been infringed and to urge CALLSTAMP COMMUNICATIONS, S.L. with NIF B85829794, to send, within ten working days following the notification of this resolution, a certification to the claimant addressing the requested right or denying it with justification indicating the reasons why the request cannot be granted, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of art. 83.6 of the GDPR, classified as very serious for the purposes of prescription in article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with art. 58.2 of the GDPR.

SECOND: NOTIFY this resolution to A.A.A. and to CALLSTAMP COMMUNICATIONS, S.L.

In accordance with the provisions of article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with art. 48.6 of the LOPDGDD, and in accordance with the provisions of article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law.

1381-090823

Mar España Martí

Director of the Spanish Agency for Data Protection
C/ Jorge Juan, 6

www.aepd.es
28001 – Madrid
sedeagpd.gob.es